AGENDA ITEM NO. 8C

DATE: March 19, 2025

TO: Planning Commission

FROM: Luis Velazquez, Planning Associate

SUBJECT: 22209 Susana Avenue (APN 7515-001-025)
Precise Plan of Development (PRE23-00013)

Consideration of a Precise Plan of Development to allow the construction of a new two-story single-family residence with accessory dwelling unit (ADU), on property located within the Hillside Overlay in the R-1 Zone at 22209 Susana Avenue (APN 7515-001-025).

RECOMMENDATION

Recommendation of the Community Development Director that Planning Commission conduct a public hearing and consider adoption of Resolution No. 24-003 for approval of a Precise Plan of Development to allow the construction of a new two-story single-family residence, on property located within the Hillside Overlay in the R-1 Zone at 22209 Susana Avenue (APN 7515-001-025), and determine a Categorical Exemption for the project in accordance with Guidelines for Implementation of the California Environmental Quality Act (CEQA); Article 19, Section 15303 (New Construction).

EXECUTIVE SUMMARY

The project applicant, Douglas Leach (Kirk Feldkamp), requests approval by the Planning Commission to allow the construction of a new two-story single-family residence with an accessory dwelling unit (ADU), on property located within the Hillside Overlay in the R-1 Zone at 22209 Susana Avenue.

The development standards of the R-1 Zone (Single Family Residential District) as well as the planning and design provisions of the Hillside Overlay are applicable to the project, and therefore require discretionary review and approval of the following entitlement:

- Precise Plan of Development (PRE) to allow new construction above 14’ in height.

On January 17, 2024, the Planning Commission held a public hearing to consider the subject request. At that meeting, the applicant provided an overview of the project and after some deliberation the applicant requested a continuance to a date uncertain to allow additional time to conduct public outreach and consider design changes to the project. A motion for continuance to a date uncertain was approved by a vote 6-0.

On July 24, 2024, the Planning Commission held a public hearing to consider the revised project. At that time the applicant brought forward a design that reduced the overall floor area and alleviated potential view impacts by scaling down the second floor. After some deliberation the applicant requested a continuance to a date uncertain to allow additional time to conduct public outreach and consider design changes to the project. A motion for continuance to a date uncertain was approved by a vote 7-0.

On March, 03, 2025, the applicant submitted a revised project for a new two-story single-family residence with an accessory dwelling unit (ADU). Staff has reviewed the revised project and determined the project complies with the objective development standards of the R-1 Zone and is consistent with the Low-Density Residential land use designation. In addition, pursuant to the Housing Accountability Act (HAA), Government Code Section 65589.5, staff has determined the revised project meets the definition of a “housing development project” and therefore only the objective development standards of the Torrance Municipal Code can be applied for purposes of evaluating the revised project. Objective standards are measurable, clear, and do not rely on personal judgment or discretion. In contrast, the planning and

design provisions of the Hillside Overlay involve subjective criteria that require interpretation, such as considerations of neighborhood compatibility and view impacts. To that end, the provisions of the Hillside Overlay cannot be applied to evaluate the revised project. Therefore, staff recommends approval of the project as revised.

The balance of this report provides an overview of the revised project. Staff notes a copy of the previous staff reports have been included as separate attachments (Attachment 6, 7).

DISCUSSION

Project Scope and Site

The revised project involves a new two-story residence with an attached two-car garage and an accessory dwelling unit (ADU) within the residence.

The project is situated on a rectangular shape lot measuring 7,020 square feet in area, which exceeds the minimum lot area and minimum dimensions required in the R-1 Zone. The project site is located at the southwest corner of Avenue A and Susana Avenue and is orientated toward east. The building pad of the proposed residence would be raised approximately 10" above the existing grade level at the southern west corner to accommodate for changes in topography. The pad height of the adjacent one-story residence to the south at 22215 Susana Avenue sits slightly below the project site, whereas the pad heights of the one and two-story residences across the street along Avenue A and Susana Avenue are situated above the project site. Staff notes the residences that abut at the rear are located within the City of Redondo Beach.

Building Setbacks and Site Improvements

The residence is centered on the lot, providing a 20.8' front yard setback, a 6.5' yard setback to the south, a 10.3' exterior side yard setback to the north, and a 21.42' rear yard setback. All setbacks meet or exceed the minimum requirements of the R-1 Zone. Additionally, the ADU will have a 5' exterior side yard setback from the north property line and a 20' front yard setback from the west property line. Staff notes an existing retaining wall located in the rear yard area would be reconstructed parallel to the rear property line. The applicant is advised that retaining walls are limited to a maximum 5' in height and would be verified at the time of plan check. Staff also notes that the site plan indicates a new pool and spa to be reviewed under a separate permit at time of plan check. The existing driveway will be repositioned along Susana Avenue to accommodate the new location of the garage and to provide greater separation from the intersection.

Building Floor Plan

The first floor, measuring 1,310 square feet, features an open-concept layout that seamlessly integrates the kitchen, dining area, and great room, creating a spacious and cohesive living environment. Large sliding doors lead to an outdoor patio, enhancing indoor-outdoor connectivity and maximizing natural light. The design emphasizes functionality and modern living, making it well-suited for entertaining and everyday use. The new garage measures 450 square feet and is orientated towards the east. As previously mentioned, the existing driveway will be repositioned along Susana Avenue to accommodate the new location of the garage and to provide greater separation from the intersection. The second floor area measures 1,816 square feet and features a traditional floor plan with separated rooms for comfort and privacy and that include three bedrooms with personal bathrooms, a playroom and a laundry room. The master bedroom provides access to a 320 square foot balcony, while the playroom has access to a 164 square foot balcony. Staff notes that the project statistics includes only one of the decks but can be corrected as part of plan check.

Building Height
The applicant initially proposed a two-story residence with a height of 25.1', measured from the topmost ridgeline (128.0') down to the lowest adjacent grade (102.9'). The revised proposal maintains a height of 25.1' , now measured from the updated topmost ridgeline (128.5') down to the corrected lowest adjacent grade (103.4'), and is within the allowable 27' height limit for a two-story residence in the R-1 Zone.

Staff notes a discrepancy on the cover sheet and elevation plans, which incorrectly list the lowest adjacent grade as 102.9' and the height as 25.6'. The revised silhouette certification confirms the correct lowest adjacent grade of 103.4' and the highest point of elevation as 128.5'. A condition of approval has been added requiring the plans to reflect the correct height of 25.1' and the lowest adjacent grade of 103.4' at the time of plan check. Staff notes for properties located within the Hillside Overlay, new construction is allowed to exceed 14' in height with approval by the Planning Commission.

Lot Coverage, Open Space, and Floor Area Ratio
As previously noted, the proposed residence is centrally positioned on the project site, creating substantial open space in the front and rear yard areas. The total usable open space in these areas measures 4,465 square feet (64%), exceeding the 33% minimum open space requirement for the R-1 Zone.

The residence covers 2,727 square feet (39.4%) of the lot, remaining within the 40% maximum lot coverage limit. The total gross floor area of the proposed residence is 4,145 square feet, which includes all floor areas, garage, volume areas exceeding 17 feet in height, the front porch, and the ADU, resulting in a 0.59 Floor Area Ratio (FAR)—within the 0.60 maximum allowed in the R-1 Zone.

Staff notes that the project is not subject to the 0.50 net interior FAR limit of the Hillside Overlay, as it does not involve remodeling or additions to an existing residence.

Provided below is a summary of the proposed residence:

22209 Susana Avenue		
	Revised Proposal	
Lot Area	6,918	sf
Proposed Building Height	25.6	ft
Maximum Two-Story Building Height Limit	27	ft
Proposed First Floor Area	1,310	sf
Proposed Second Floor Area	1,816	sf
Proposed Garage Floor Area	450	sf
Proposed Total Floor Area	3,576	sf
Proposed Total Floor Area	3,576	sf
Front Porch	96	sf
Volume Areas > 17'	118	sf
Accessory Dwelling Unit (ADU)	355	sf
Proposed Floor Area Ratio	4,145	sf (0.59 FAR)
Maximum Floor Area Ratio Limit	4,151	sf (0.60 FAR)
Proposed Lot Coverage	35.6%	2,461 sf
Maximum Lot Coverage Limit	40%	2,767 sf
Proposed Open Space Area	68%	4,705 sf
Minimum Open Space Requirement	33%	2,305 sf

Hillside Overlay

In accordance with Article 41, Chapter 1, Division 9 of the Torrance Municipal Code, the Planning Commission is required to make a series of findings relating to the planning and design of the project and its potential to have a substantial adverse impact on the view, light, air, and privacy of properties in the vicinity. The applicant has responded to this requirement in the Hillside Overlay Substantiation Form (Attachment 3). The applicant was also required to reconstruct a silhouette of the proposed two-story residence, as revised, to demonstrate potential impacts. A licensed engineer has verified the height of the revised silhouette (Attachment 2), and staff made field assessments on March 11, 2025. It is important to note that subjective matters, such as evaluating views, light, air, and privacy considerations, are not applicable in this review process. Only objective, measurable impacts are considered in accordance with state and local regulations. The Planning Commission is required to assess the project based on these objective standards, ensuring the review process remains consistent, transparent, and aligned with both state and local regulations. Previous assessments of the project and its potential impacts have been included in this review, and the project, as currently proposed, continues to present the same impacts as previously identified.

The property owners at 22213 Shadycroft Avenue previously expressed concerns regarding potential impacts to view and privacy, particularly regarding views of the ocean, trees, streets, and lights in the vicinity resulting from the proposed two-story residence, as well as privacy concerns related to the proposed front balcony. Staff previously determined that the property, located approximately 200 feet east of the proposed residence at a significantly higher elevation than the properties along Susana Avenue, would not experience a substantial adverse impact on views or privacy due to the elevation difference and distance from 22213 Shadycroft Avenue.

Similarly, the property owner at 5803 Avenue A had previously raised concerns regarding potential view impacts, specifically the obstruction of views of the Palos Verdes Hills due to the proposed two-story residence. Based on field assessments conducted at that time, staff concluded that the silhouette did obstruct views of the Palos Verdes Hills, and the proposed second story and overall building height appeared to create a significant adverse impact on those views.

Additionally, past assessments included concerns from the property owner at 22206 Susana Avenue regarding potential impacts on views and light, particularly related to views of the neighboring city and homes, as well as reduced natural sunlight during certain seasons. At that time, staff determined that the proposed residence would not result in a substantial adverse impact on views or light, given its position at a lower elevation and the natural seasonal variations in sunlight. However, with the recent revisions, the property owner at 22206 Susana Avenue has raised new concerns regarding privacy due to the proposed front balcony. The neighbor indicates that the front balcony may allow direct views into their property, affecting the privacy of their outdoor areas and living spaces. Staff acknowledges these concerns but notes that the front balcony is located far enough from the neighboring property to reduce the impact, and as such, the privacy intrusion is not considered substantial.

The property owner at 22215 Susana Avenue also previously raised privacy concerns, specifically regarding the proposed southeast second-floor window and its potential to allow direct views into their rear property, living room, and rear bedroom. Staff's prior assessment concluded that the proposed residence would not result in a substantial adverse impact on privacy, as the southeast second-floor window was intended for a bathroom, and its orientation and height would not create a privacy intrusion. However, as the project has been revised, the addition of balconies facing east and west introduces new privacy concerns. The neighbor indicates that these balconies create additional opportunities for direct views into private outdoor spaces and living areas at 22215 Susana Avenue. The positioning of the balconies worsens privacy impacts by allowing views into areas that were previously shielded from direct sightlines. However, since the balconies face east and west, away from the private areas of the neighboring property, staff does not consider the privacy impacts to be substantial. Given these changes,

staff acknowledges that the project, as revised, presents some greater privacy impacts than initially assessed, though these impacts are not considered substantial.

CONCLUSION

As previously noted in the report, staff has reviewed the revised project and determined the project complies with the objective development standards of the R-1 Zone and is consistent with the Low-Density Residential land use designation. In addition, pursuant to the Housing Accountability Act (HAA), Government Code Section 65589.5, staff has determined the revised project meets the definition of a "housing development project" and therefore only the objective development standards of the Torrance Municipal Code can be applied for purposes of evaluating the revised project. Objective standards are measurable, clear, and do not rely on personal judgment or discretion. In contrast, the planning and design provisions of the Hillside Overlay involve subjective criteria that require interpretation, such as considerations of neighborhood compatibility and view impacts. To that end, the provisions of the Hillside Overlay cannot be applied to evaluate the revised project. Therefore, staff recommends approval of the project as revised.

FINDINGS OF FACT AND CONDITIONS OF APPROVAL

Staff has prepared draft findings and conditions of approval for consideration by the Planning Commission that are listed in the attached Resolution (Attachment 1).

CODE REQUIREMENTS

Staff has prepared a partial list of requirements from the Torrance Municipal Code, California Building Code, California Fire Code, et al., that are pertinent to the project (Attachment 3). Not all requirements are provided, and the applicant is strongly advised to contact each individual Department/Division for more information. The requirements are not subject to modification and the Planning Commission cannot waive or alter the requirements.

PUBLIC NOTICE

In accordance with the Torrance Municipal Code, notices of the public hearing were made no less than 10 calendar days before the Planning Commission meeting. Notices were also posted at the project site and were mailed on February 27, 2025, to the registered owner of properties located within a 500' radius of the exterior boundaries of the project site. Notices were also published in the local newspaper (The Daily Breeze) and posted on the City of Torrance webpage.

RIGHT OF APPEAL

In accordance with Torrance Municipal Code Section 96.2.5, decisions made by the Planning Commission may be appealed to the City Council within 15 calendar days of adoption of the Resolution. For more information, please contact the City Clerk's Office by telephone at (310) 618-2870 or email at CityClerk@TorranceCA.Gov.

PROJECT PLANS

The project plans and all related documents are readily available for public review at the Permit Center (Planning Counter) located at City Hall, 3031 Torrance Boulevard, Torrance CA 90503, during normal business hours open 8:00am to 5:00pm, Monday through Thursday, open alternate Fridays. Appointments are available by contacting the Planning Division at (310) 618-5990.

ATTACHMENTS

1. Resolution No. 24-003
2. Silhouette Certification (Revised)
3. Hillside Substantiation Form
4. Code Requirements
5. Correspondence
6. Project Plans (Revised)
7. Previous Staff Report and Supplemental Material (January 17, 2024)
8. Previous Staff Report and Supplemental Material (July 24, 2024)

STAFF CONTACT

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